TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter I—Coast Guard, Department of the Treasury

PART 19—WAIVERS OF NAVIGATION AND VESSEL INSPECTION LAWS AND REGULATIONS

VESSELS OPERATED BY PACIFIC MICRONESIAN LINES, INC.

CROSS REFERENCE: For promulgation of a waiver order affecting § 19.35 *Department of the Interior vessels operated by Pacific Micronesian Lines, Inc.*, see Title 46, Chapter I, Part 154, *infra*.

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 917]

ALASKA

PARTIALLY REVOKING EXECUTIVE ORDERS NOS. 8344 OF FEBRUARY 10, 1940 AND 8789 OF JUNE 14, 1941

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Orders No. 8344 of February 10, 1940, and No. 8789 of June 14, 1941, reserving public lands in Alaska for certain public purposes, are hereby revoked so far as they affect the following-described lands:

KODIAK ISLAND

U. S. Survey No. 3098.
U. S. Survey No. 3099.
U. S. Survey No. 3100.
U. S. Survey No. 3101.
U. S. Survey No. 3103.
U. S. Survey No. 3104.

The tracts described aggregate 189.56 acres.

The lands released from withdrawal by this order shall not become subject to the initiation of any rights or to any disposition under the public-land laws until it is so provided by an order of classification to be issued by an authorized officer opening the lands to application under the Small Tract Act of June 1, 1938 (52 Stat. 609; 43 U. S. C. 682a), as amended, with a ninety-one day preference right period for filing such applications by veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944 (58 Stat. 497; 43 U. S. C. 279–284) as amended.

ORME LEWIS,
Assistant Secretary of the Interior.

OCTOBER 6, 1953.

[F. R. Doc. 53-8634; Filed, Oct. 9, 1953; 8:45 a. m.]

TITLE 46—SHIPPING

Chapter I—Coast Guard, Department of the Treasury

Subchapter O—Regulations Applicable To Certain Vessels During Emergency

[CGFR 53-45]

PART 154—WAIVERS OF NAVIGATION AND VESSEL INSPECTION LAWS AND REGULATIONS [1]

VESSELS OPERATED BY PACIFIC MICRONESIAN LINES, INC.

The Secretary of Defense in a letter dated September 10, 1953, recommended a general waiver of all the navigation and vessel inspection laws administered by the United States Coast Guard, as well as the regulations issued thereunder and published in 33 CFR Chapter I or in this chapter, to the extent necessary to permit the operation of certain vessels which are the property of or in the custody of the Department of the Interior and operated under contract by the Pacific Micronesian Lines, Inc., to furnish transportation in the Trust Territory of the Pacific Islands, as well as between the Trust Territory of the Pacific Islands and all the ports of the United States, including its territories and possessions, and foreign ports, and further recommended that the waiver order designated § 154.35, dated June 30, 1953, and published in the FEDERAL REGISTER July 9, 1953 (18 F. R. 4009), be amended to include four non-self-propelled tank barges.

The purpose of the following waiver order designated § 154.35, as well as 33 CFR 19.35, is to waive the navigation and vessel inspection laws and regulations issued pursuant thereto which are administered by the United States Coast Guard to the extent necessary to permit the operation of the U. S. S. "Chicot" (AK 170), U. S. S. "Gunner's Knot" (official number 248054), U. S. S. "Errol" (AKL 4), U. S. S. "Metomkin" (AKL 7), U. S. S. "Roque" (AKL 8), and U. S. S. "Torry" (AKL 11), as well as the schooner "Frela," the schooner "Milleeta," and the survey boat "Baker" or other vessels which may be used as substitutes for these vessels and four non-self-propelled tank barges (YOGN, numbered 13, 18, 20, and 21) which are the property of or in the custody of the Department of the Interior, by the Pacific Micronesian Lines, Inc., to furnish transportation in the Trust Territory of the Pacific Islands, as well as between the Trust Territory of the Pacific Islands and the United States, including its territories and possessions, and foreign ports, until and including June 30, 1954, unless sooner terminated by proper authority, and to supersede the waiver order dated June 30, 1953, and published in the FEDERAL REGISTER July 9, 1953 (18 F. R. 4009). It is hereby found that compliance with the notice of proposed rule making, public rule making procedure thereon, and effective date requirements thereof of the Administrative Procedure Act is impracticable and contrary to the public interest.

By virtue of the authority vested in me as Commandant, United States Coast Guard, by an order of the Acting Secretary of the Treasury, dated January 23, 1951, identified as CGFR 51-1, and published in the FEDERAL REGISTER dated January 26, 1951 (16 F. R. 731), the following waiver order is promulgated and shall be in effect to and including June 30, 1954, unless sooner terminated by proper authority, and § 154.35 is revised as follows:

§ 154.35 *Department of the Interior vessels operated by the Pacific Micronesian Lines, Inc.* (a) Pursuant to the recommendation of the Secretary of Defense in a letter dated June 26, 1953, made under the provisions of section 1 of Public Law 891, 81st Congress (64 Stat. 1120; 46 U. S. C., Sup., note prec. 1), I hereby waive in the interest of national defense compliance with the provisions of the navigation and vessel inspection laws administered by the United States Coast Guard, as well as the regulations issued thereunder and published in 33 CFR Chapter I or in this chapter, to the extent necessary to permit the operation of the U. S. S. "Chicot" (AK 170), U. S. S. "Gunner's Knot" (official number 248054), U. S. S. "Errol" (AKL 4), U. S. S. "Metomkin" (AKL 7), U. S. S. "Roque" (AKL 8), and U. S. S. "Torry" (AKL 11), as well as the schooner "Frela," the schooner "Milleeta," and the survey boat "Baker" or other vessels which may be used as substitutes for such vessels, which are the property or in the custody of the Department of the Interior, and operated by the Pacific Micronesian Lines, Inc., in the Trust Territory of the Pacific Islands, as well as between the Trust Territory of the Pacific Islands and all the ports of the United States, including its territories and possessions, and foreign ports, and this waiver order shall be in effect from July 1, 1953, to and including June 30, 1954, unless sooner terminated by proper authority.

(b) Pursuant to the recommendation of the Secretary of Defense in a letter dated September 10, 1953, made under the provisions of section 1 of Public Law 891, 81st Congress (64 Stat. 1120; 46 U. S. C. Sup., note prec. 1), I hereby waive in the interest of national defense compliance with the provisions of the navigation and vessel inspection laws administered by the United States Coast Guard, as well as the regulations issued thereunder and published in 33 CFR Chapter I or in this chapter, to the extent necessary to permit the operation of four non-self-propelled tank barges (YOGN and numbered 13, 18, 20, and 21, respectively) which are the property of or in the custody of the Department of the Interior and operated by the Pacific Micronesian Lines, Inc., in the Trust Territory of the Pacific Islands, as well as between the Trust Territory of the Pacific Islands and all the ports of the United States, including its territories and possessions, and foreign ports, and this waiver order shall be in effect from September 2, 1953, to and including June

[1] This is also codified in 33 CFR Part 19.